

The complaint

Mr B complains Revolut Ltd won't refund the money he lost when he fell victim to a scam.

What happened

The details of this complaint are well known to both parties, so I've just summarised the key events.

Mr B was looking for work and received a message about a remote job opportunity. He says he was added to a group about this and had to complete tasks. He initially received some credits from the scheme – but also had to pay to access tasks. He was then told about an investment opportunity linked to the tasks. Mr B was assigned a tutor to guide him through setting up a cryptocurrency wallet to send funds on to invest.

Unfortunately, this was all a scam. Mr B realised this after being asked to pay more to withdraw his profits. He reported the matter to Revolut, then referred the matter on to our service when it didn't agree to refund him. He said Revolut should refund him under the FPS Reimbursement Rules – and that it hadn't considered his claim properly, such as including factual errors in its response.

I've set out the payments made and received during the course of this scam below to show the scope of what we're considering. In between payments 4 and 5, Revolut blocked Mr B's account and a series of cryptocurrency-related payments were reverted or declined. For simplicity and as no funds were sent on successfully, I've not listed these.

Number	Date	Description	Amount
Credit 1	11/09/2025	Credit from third party	£8.00
Credit 2	11/09/2025	Credit from third party	£10.00
Payment 1	12/09/2025	Transfer to third party	-£10.00
Credit 3	12/09/2025	Credit from third party	£27.00
Payment 2	12/09/2025	Transfer to third party	-£30.00
Payment 3	12/09/2025	Credit from third party	-£4.00
Credit 4	12/09/2025	Credit from third party	£60.20
Credit 5	13/09/2025	Credit from third party	£11.00
Payment 4	13/09/2025	Transfer to third party	-£95.00
Payment 5	13/09/2025	Transfer to Mr B's crypto wallet	-£860.00
Payment 6	14/09/2025	Transfer to Mr B's crypto wallet	-£1,680.00

Our Investigator didn't uphold Mr B's complaint. She said Payments 1-4 were covered by the FPS Reimbursement Rules, but didn't think any reimbursement was due given the returns received and the excess which she concluded could be applied to the claim. She didn't think Payments 5 or 6 were covered due to being sent on to Mr B's own account.

The Investigator also didn't think Revolut should have prevented the payments. She said Mr B had been asked about attempted payments to his cryptocurrency wallet and selected that he was investing. He was then shown warnings about investment scams – and opted to proceed. The Investigator considered Revolut's actions proportionate to the risk involved.

Mr B appealed the Investigator's outcome. I've summarised his key arguments:

- He doesn't recall selecting that the payments related to an investment, saying he believed it was part of a work arrangement. He says Revolut's information about this shouldn't be relied on.
- He answered the questions about what he was doing in good faith.
- Revolut should have instead spoken to him via a direct chat message or call.
- Revolut is claiming he acted with gross negligence and he disputes this.
- The cryptocurrency wallet wasn't fully under his control so these payments should be considered under the FPS Reimbursement Rules

He also mentioned that, at the time of falling victim to this scam, he had been out of work due to injury – and so was looking to secure an income after being confirmed fit to work.

I then issued my provisional decision explaining I was minded to conclude that Revolut should reimburse £32.97 in relation to the payments covered by the FPS Reimbursement Rules – but that it didn't need to refund the payments to Mr B's crypto wallet:

"Which payments fall under the scope of the FPS Reimbursement Rules?"

The FPS Reimbursement Rules set out when Payment Service Providers (PSPs) such as Revolut are required to refund victims of Authorised Push Payment (APP) scams – subject to the eligibility criteria. One such eligibility requirement is that the rules only cover payments sent to an account which isn't controlled by the consumer. As defined by the rules, an account is deemed controlled by the consumer if they can access and make payments from it. That doesn't preclude that someone else may also have access to it.

It's agreed that Payments 1-4 are covered by the FPS Reimbursement Rules. Mr B says Payments 5 and 6 should also be covered as the account paid wasn't fully under his control. However, given what he has explained to us about how the wallet was set up and used, it appears to me that he (also) had access to this account. I'm therefore persuaded Payments 5 and 6 aren't covered by the rules.

"What should be reimbursed under the rules?"

Even when the rules apply, there is a limit to what PSPs are expected to reimburse. They can apply a deduction to the reimbursable amount of up to £100, referred to as "the excess", per claim - unless the victim was a vulnerable consumer at the time of making at least one of the payments they are claiming for and their vulnerability affected their ability to protect themselves from the scam.

Under the rules, vulnerability has the same meaning as when the term is used by the FCA in its "Guidance for firms on the fair treatment of vulnerable customers". A vulnerable consumer is someone who, due to their personal circumstances, is especially susceptible to harm – particularly when a firm is not acting with appropriate levels of care.

I've thought carefully about whether it's fair to apply the excess in light of this guidance, given what Mr B has told us about his circumstances. I'm conscious he had suffered an injury previously and was looking for work – which I think played a role in him falling victim to this scam.

However, I'm not persuaded Mr B's circumstances made him especially susceptible to harm, nor that they materially affected his ability to protect himself. Mr B had been deemed fit for work at the time, and I've not seen much which persuades me he was unable to identify and act on indications of risk here. Rather, it was just that he was persuaded by the scammer's tactics – in particular, the credits paid initially to induce him to proceed.

I'm therefore persuaded the excess can be applied here. Revolut says that, as the payments covered by the rules come to a total value of £139, and the credits received throughout the scam amount to £116.20, there is no loss to reimburse once the excess is applied.

It appears the credits served as an inducement to persuade Mr B to proceed. I don't think they should be attributed to any specific payment(s). I think they should instead be deducted from the amount lost to the scam overall by apportioning them proportionately across all of the payments Mr B made to the scam – including those not covered by the FPS Reimbursement Rules. This ensures that these credits are fairly distributed.

Here, the credits Mr B received amount to around 4.34% of the total paid to the scam. It follows that the outstanding loss from each payment should be reduced by the same percentage.

That means the outstanding loss from payments 1-4 comes to £132.97. Given the excess Revolut can apply, I therefore think it should reimburse Mr B £32.97 under the FPS Reimbursement Rules.

Revolut still wouldn't be expected to refund Mr B under the FPS Reimbursement Rules if he failed with gross negligence to comply with the rules' "Consumer Standard of Caution". For completeness, I have considered whether that is the case here – and I don't think it is.

For example – one standard is that consumers are required to have regard for interventions by their PSP. However Revolut hasn't shown it intervened on (or prior to) any payments covered by the rules. So I don't think this exception can be fairly applied.

Does Revolut hold any further liability for Mr B's loss?

In broad terms, the starting position at law is that PSPs such as Revolut are expected to process payments and withdrawals that a customer authorises them to make – in accordance with the Payment Services Regulations 2017.

Here, it's agreed that Mr B authorised these payments. However I appreciate he did so due to falling victim to a scam. In line with longstanding regulatory expectations and requirements and what I consider to be good industry practice at the time, I'd expect Revolut to have been on the lookout for indications of fraud risks. If it failed to respond proportionately to such a risk, and doing so would have prevented Mr B from incurring a fraudulent loss, it may fairly hold some liability for this.

I don't think the first four payments looked particularly concerning. They were for amounts in keeping with Mr B's usual spending. However, Revolut did identify a risk after this – as it blocked several cryptocurrency-related payments and restricted Mr B's account.

As has been shared with Mr B, when he initially tried to send £860 to his cryptocurrency wallet, it seems Revolut asked him what he was doing. I've seen the list of options that would have been available for him to select (which I'll also share with Mr B). One option was "It's related to a job opportunity". According to Revolut's records, Mr B selected "It's part of an investment". Revolut then asked a series of follow up questions, and displayed some warnings based on common features of investment scams. After seeing these, Mr B opted to proceed.

I'm aware Mr B disputes that he would have selected this option. However, I don't consider there to be much reason to doubt Revolut's records about this. Especially as, when speaking to our Investigator, Mr B told her the later payments were intended for a form of investment which the scammers told him was linked to the tasks he had been completing. I can also see a pinned message from his chat with the scammer referencing an investment. So it seems consistent with what he has told us about the scam that he would select this option.

Mr B says Revolut should instead have asked him questions directly via in-app chat or called him to ask about what he was doing. However, looking at the nature of the payments he made/attempted, I'm not persuaded that was warranted. I think asking what he was doing, and displaying warnings based on what he selected, was a proportionate response.

In any event, Mr B has also explained that the scammers told him to send screenshots if there were any issues making the payments – and they said they would guide him and provide instructions on what to do. It's also clear he was very convinced by the scam due to the credits received. Given this and bearing in mind the coaching tactics it appears the scammers would have employed, it's not clear to me that further intervention of this nature would have led to the scam being uncovered.

I'm therefore not persuaded Revolut is at fault for not preventing Mr B's loss to the scam. I've also seen records confirming that the funds were moved on quickly from the third parties paid – meaning Revolut wasn't able to recall the funds successfully when the scam was reported. I therefore don't think Revolut holds further liability beyond its obligations under the FPS Reimbursement Rules.

I have considered Mr B's concerns about the service Revolut provided. However, I don't think the impact of any service issues on Mr B warrants further compensation. I appreciate Mr B was frustrated and upset by the responses, but I think this was largely due to the upset of discovering he had been scammed – and not being reimbursed by Revolut.

I'm awarding interest on top of the amount I think should have been refunded under the FPS Reimbursement Rules to compensate Mr B for the loss of use of these funds. I'm satisfied that is a fair way overall to settle this complaint."

I invited both parties to provide further comments or evidence in response to my provisional decision. Revolut accepted my proposed outcome, but Mr B has appealed. Due to the length of his response, I've summarised the main points raised:

- *He recalls selecting the payment purpose as "job opportunity" rather than "investment". He hasn't been provided with evidence confirming otherwise, nor that investment was available as an option.*
- *Revolut's questionnaire options limited how accurately he could express what he was doing.*
- *Despite recognising there was an elevated risk, Revolut failed to undertake meaningful intervention, such as a direct discussion – and there is no evidence this wouldn't have uncovered the scam. Stronger intervention would have made a difference.*

- His vulnerability needs to be considered further, as the scam preyed on his circumstances and affected his ability to protect himself.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

Having done so, I've come to the same outcome as I did in my provisional decision – and largely for the same reasons, which are set out above and also form part of my final decision. I'll therefore focus here on addressing Mr B's response.

I'd highlight that, in doing so, I may not comment on all points and evidence provided and I won't be responding in the same level of detail as the submissions put forward. While I've carefully considered everything that has been submitted, my decision focusses on the points I consider key to explaining my outcome.

I acknowledge I can't be certain about what happened here. But the standard our service works to is the balance of probabilities. So, if there is a dispute about what happened, I must consider what is *more likely than not* to have happened based on the available information.

My provisional decision already explained why I was persuaded Mr B likely selected investment when asked about the purpose of the payment. This isn't just based on Revolut's systems information – although I do place weight on this. From experience, I'm persuaded Revolut's system would have given Mr B the option to select either investment or job opportunity at the time. I also consider Mr B's contact with the scammer, as well as what he told us prior to the Investigator issuing their view, consistent with him selecting that he was investing.

I'd also point out that if (as Mr B maintains) he selected that the payment was related to a job opportunity, Revolut's systems would have directed him to a series of warnings about scams of this type. So if he did select this option – which I don't consider to be the more likely occurrence – that would suggest Mr B wasn't deterred by these scam warnings as he went on to make further payments.

I understand Mr B's point that Revolut's questionnaire warnings gave him limited scope for what to select, and that he thinks it should have spoken to him directly. However, I consider it reasonable that the level of intervention undertaken should be proportionate to the risk level associated with the payment. Given the value and character of the £860 payment attempt Revolut intervened on, I think questioning in this format was appropriate.

In thinking about what level of intervention is appropriate, a balance must be struck to ensure this is viable for firms to maintain given the value and volume of payments they process – and attempting to minimise disruption and frustration to those making payments not connected to fraud. While Revolut's options didn't allow Mr B to input "freeform" answers, I'm satisfied it provided him with an adequate range of options – which then generated warnings based on common scam reasons associated with those payment reasons. Overall, I'm satisfied Revolut's intervention was proportionate.

Finally, I have considered what Mr B has explained about his circumstances at the time of this scam. I do appreciate that the premise of the scam was targeted towards those looking for work – as Mr B was. However, for the reasons explained in my provisional decision, I don't think that means Mr B was *particularly* susceptible to harm or unable to take steps to identify and act on signs this might be a scam. I therefore don't think the excess was applied unfairly under the FPS Reimbursement Rules. Nor do I think Mr B's circumstances mean Revolut ought to have done more to protect him at the time of making the payments.

I've explained in my provisional decision why I think Revolut needs to pay some reimbursement towards those payments covered by the FPS Reimbursement Rules – as Revolut has now accepted. I consider that a fair way to resolve this complaint. For the reasons I've set out above (including in my provisional decision), I don't think it would be fair for me to direct it to refund or compensate Mr B further in relation to this complaint.

My final decision

For the reasons given above, my final decision is that Revolut Ltd should reimburse Mr B £32.97. It should also pay 8% simple interest per year on this amount, running from the date it declined Mr B's claim in relation to Payments 1-4 to the date of settlement.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr B to accept or reject my decision before 4 August 2026.

Rachel Loughlin
Ombudsman